

19NWCV00244 19NWCV00244

County: los-angeles

Division: Civil Law and Motion

Department: P

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Case Number: 19NWCV00244 Hearing Date: July 30, 2026 Dept: P

VIVERA

PHARMACEUTICALS, INC. v. BLAINE HOLDING & DEVELOPMENT, LLC, ET AL.

CASE NO.: 19NWCV00244

HEARING: 07/30/2026 @ 9:30 AM

#13

TENTATIVE ORDER

Blaine Laboratories' motion for return of its deposit is

GRANTED. The cashier's check in the amount of \$22,096.95 will be returned to Blaine Laboratories.

Moving party to give notice.

Blaine Laboratories moves for the return of its deposit of a

Cashier's Check pursuant to Code of Civil Procedure section 1174.3, subdivision (d).

Background

On March 15, 2019, Plaintiff Vivera Pharmaceuticals, Inc.

(Plaintiff) filed this commercial unlawful detainer action against Defendant

Blaine Holding & Development, LLC and Does 1 through 20 concerning the following

real properties: (1) 21,412 square feet located at 11037 Lockport Place, Santa

Fe Springs, California, 90670 (Building One); (2) 14,670 square feet of the

North warehouse space located at 11100 Greenstone Avenue, Santa Fe Springs, California, 90670 (Building Two); and (3) 11,450 square feet South warehouse space located at 11110 Greenstone Avenue, Santa Fe Springs, California, 90670 (collectively, the Premises).

On August 12, 2019, the Court granted Claimant Blaine Laboratories, Inc. (Blaine Laboratories) Claim of Possession as to Building One.

On February 9, 2022, Plaintiff filed a third amended complaint alleging breach of contract claims. On October 6, 2022, the Court sustained Defendants Blaine Holding & Development, LLC and Blaine Laboratories, Inc., and Robert Blaine's demurrer to the third amended complaint. The Court stayed this action in abatement pending disposition of Plaintiff's earlier-filed breach of contract action (Case No. 19STCV05281).

On August 26, 2025, the Court lifted the stay on this action and granted defense counsel's request for dismissal of the entire action for Plaintiff's counsel's failure to appear.

Discussion

Blaine Laboratories moves for the return of its deposit of a Cashier's Check in the amount of \$22,096.95.

Code of Civil Procedure section 1174.3, subdivision (d) provides that following a hearing to determine whether there is a valid claim of possession, "[i]f the court determines the claim is valid, the amount equal to 15 days' rent paid by the claimant shall be returned immediately to the claimant."

Here, Blaine Laboratories shows that on August 12, 2019, the Court granted Blaine Laboratories' Claim of Possession as to Building One. (Laird Decl., Exh. 3.) The Court "conclude[d] the Claim of Possession is valid." (Order, 8/12/19.) However, Blaine Laboratories contends that its deposit supplied in connection with its claim has never been returned. (Laird Decl., ¶ 3.) Pursuant to Code of Civil Procedure section 1174.3, subdivision (d), Blaine Laboratories' is entitled to the return of its deposit, a cashier's check in the amount of \$22,096.95.

Accordingly, Blaine Laboratories' motion for return of its deposit is GRANTED. The cashier's check in the amount of \$22,096.95 will be returned to Blaine Laboratories.